

22STCV13267 22STCV13267

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Case Number: 22STCV13267 Hearing Date: July 9, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS

I. INTRODUCTION

This action was filed on April 21, 2022, and arises from the tragic deaths of Plaintiff Erik Denton's ("Plaintiff") three minor children at the hands of their mother, Liliana Carrillo. Plaintiff alleges that the City of Los Angeles and the County of Los Angeles (collectively, "Defendants") negligently failed to fulfill their mandatory duties under the Child Abuse and Neglect Reporting Act (CANRA) by failing to investigate and cross-report allegations of abuse, which he contends could have prevented the killings.

On June 11, 2026, Plaintiff filed the instant motion to compel compliance with a deposition subpoena for production of business records served on nonparty Boys and Girls Club of San Fernando Valley. On July 2, 2026, Real Party in interest - the Boys and Girls Club ("RP") filed an opposition. No reply has been filed.

II. LEGAL STANDARD

CCP § 2020.010 permits discovery of non-party witnesses through oral and written depositions. (See CCP § 2020.010(a)(1), (2); *Hawkins v. TACA International Airlines, S.A.* (2014) 223 Cal.App.4th 466, 476.) A deposition subpoena may command the attendance and testimony of the deponent, the production of business records, or both. (CCP § 2020.020.) Additional requirements regarding notification and a right to object are in place where the records sought are consumer records, including personal medical records. (See CCP § 1985.3.)

California Code of Civil Procedure section 1987.1, subdivision (a) states, "[i]f a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

"[U]pon motion reasonably made by the party, judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas." (*Lee v. Swansboro Country Property Owners Ass'n* (2007) 151 Cal.App.4th 575, 582-583.)

Where discovery implicates privacy rights, the court must balance the competing interests by determining whether the information sought is directly relevant to the litigation and whether the need for discovery outweighs the privacy interests at stake. (*Britt v. Superior Court* (1978) 20 Cal.3d 844; *Allen v. Superior Court* (1984) 151 Cal.App.3d 447; *Harris v. Superior Court* (1992) 3 Cal.App.4th 661.)

Welfare and Institutions Code section 10850 provides that records made or kept by a public officer or agency in connection with the administration of public social services are confidential and generally not subject to disclosure. However, the statute permits disclosure where the examination is directly connected with the administration of the program, including in a criminal or civil proceeding conducted in connection with the administration of that program. (Welf. & Inst. Code, § 10850, subd. (a).)

III. ANALYSIS

Plaintiff moves to compel compliance with a deposition subpoena for production of business records served on nonparty Boys and Girls Club of San Fernando Valley ("RP"). Plaintiff served the subpoena on March 19, 2026. (Casey Decl., ¶ 4, Ex. 1.) On April 21, 2026, Boys and Girls Club partially complied but objected to producing documents responsive to Categories 1, 8, 9, 10, and 11. (Casey Decl., ¶ 5, Ex. 2.) The instant motion seeks to compel production only as to Category 1. (Motion, pp. 1-2.)

Category 1 seeks documents concerning Liliana Carrillo, including medical and treatment records, appointment records, communications between the Boys and Girls Club, DCFS, and assessor Gina Patrella, documents provided by DCFS, and documents created by the Boys and Girls Club. (Casey Decl., ¶ 5, Ex. 2.) Plaintiff argues the requested documents are directly relevant because they may reveal why Ms. Carrillo's mental health assessment was never completed before she murdered her children. (Motion, p. 3.) Specifically, Plaintiff contends the evidence indicates the assigned assessor was provided an incorrect telephone number for Ms. Carrillo, but the requested communications and records are necessary to determine how the incorrect number was transmitted and who was responsible for the communication error. (Motion, pp. 3-6.)

Plaintiff argues the requested documents are directly relevant to liability because they may reveal why Ms. Carrillo's mental health assessment was never completed, including how the assigned assessor received an incorrect telephone number. Plaintiff further contends Welfare and Institutions Code section 10850 does not bar disclosure because the requested records are directly connected to this action and any privacy concerns can be addressed through a protective order. (Motion, pp. 3-9.)

RP opposes the motion, arguing the requested documents are protected from disclosure under Welfare and Institutions Code section 10850 and that Plaintiff has not shown the information cannot be obtained from another source. Boys and Girls Club contends no assessment was ever performed and any records it received originated from DCFS, which is already a party to this action and the more appropriate source of the requested documents. (Opposition., pp. 2-4.)

The Court finds Plaintiff has demonstrated good cause for production. The requested documents are directly relevant because they concern the referral and attempted scheduling of Ms. Carrillo's Up Front Assessment, including how the assigned assessor received an incorrect telephone number and why the assessment was never completed. On balance, Plaintiff's need for the requested discovery outweighs the asserted privacy interests.

Further, the Court is not persuaded that Welfare and Institutions Code section 10850 bars disclosure of the requested documents. As Plaintiff argues, section 10850 permits disclosure in a civil proceeding conducted in connection with the administration of the public social services program at issue. (Motion, p. 8.) RP cites no authority demonstrating that section 10850 precludes disclosure under these circumstances.

The Court is likewise not persuaded by RP's argument that Plaintiff must first seek the requested documents from DCFS. Although RP contends any responsive records originated with DCFS, Category 1 also seeks communications involving Boys and Girls Club, communications with the assigned assessor, and documents created by Boys and Girls Club. Thus, the

subpoena seeks documents beyond those allegedly transmitted by DCFS. Under these circumstances, the Court finds Plaintiff has demonstrated a sufficient need for the requested discovery.

The Court GRANTS Plaintiff's motion to compel compliance with deposition subpoena for production of business records.

IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiff's motion to compel compliance with deposition subpoena for production of business records.

Plaintiff is to give notice.

Dated: July 9, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT